DEPARTMENT OF THE AIR FORCE
HEADQUARTERS UNITED STATES AIR FORCE
WASHINGTON DC

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12 May 2026

MEMORANDUM FOR DISTRIBUTION C
MAJCOMs/FLDCOMs/FOAs/DRUs

FROM: HQ USAF/JA
1420 Air Force Pentagon
Washington DC 20330-1420

SUBJECT: Department of the Air Force Guidance Memorandum to Air Force Instruction 51-402, *International Law*

By Order of the Secretary of the Air Force, this Department of the Air Force Guidance Memorandum immediately re-designates Air Force Instruction (AFI) 51-402, *International Law*, as Department of the Air Force Instruction (DAFI) 51-402, *International Law* and implements changes to DAFI 51-402, *International Law*. Compliance with this memorandum is mandatory. To the extent its directions are inconsistent with other Department of the Air Force (DAF) publications, the information herein prevails, in accordance with Department of the Air Force Instruction 90-160, *Publications and Forms Management*, and Department of the Air Manual 90-161, *Publishing Processes and Procedures*.

This guidance is applicable to all civilian employees of the DAF, uniformed members of the Regular Air Force, the Air Force Reserve, the Air National Guard, the United States Space Force, and those with a contractual obligation to abide by the terms of DAF publications.

This guidance implements Department of Defense Instruction 5525.01, *Foreign Criminal and Civil Jurisdiction*, and incorporates and updates relevant foreign criminal jurisdiction policy and procedures from Air Force Joint Instruction (AFJI) 51-706, *Status of Forces Policies, Procedures, and Information*. This guidance supersedes AFJI 51-706.

Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule which is located in the Air Force Records Information Management System.

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This memorandum becomes void after one year has elapsed from the date of this memorandum, or upon publication of an interim change or rewrite of the affected publication, whichever is earlier.

CHRISTOPHER A. EASON
Major General, USAF
The Judge Advocate General

Attachment:
Guidance Changes

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ATTACHMENT

Guidance Changes

Current guidance in DAFI 51-402, *International Law*, remains in effect with the following changes:

1. (Replaced) **Policy.**

1.1. (Replaced) Consistent with Department of Defense Instruction (DoDI) 5525.01, *Foreign Criminal and Civil Jurisdiction*, it is Department of the Air Force (DAF) policy to apply, when practicable, procedures similar to those called for in the U.S. Senate Resolution of Ratification, with reservations, to the North Atlantic Treaty Organization Status of Forces Agreement, in all areas outside the United States where Department of War (DoW) personnel are present in connection with official duties, even in those areas where the North Atlantic Treaty Organization Status of Forces Agreement is not applicable.

1.2. (Replaced) For all DoW personnel present in all areas outside the United States in connection with official duties, the DAF seeks to:

1.2.1 (New) Maximize the exercise of U.S. jurisdiction over DoW personnel to the extent permissible under applicable status of forces agreements (SOFA) or other forms of jurisdiction arrangements.

1.2.2. (New) Protect, to the maximum extent possible, the rights of DoW personnel who may be subject to criminal trial by foreign courts and imprisonment in foreign prisons.

1.2.3. (New) If arrested, secure, where possible, the release of DoW personnel to the custody of U.S. authorities pending completion of all foreign judicial proceedings.

1.3. (New) Under paragraph 2.1. of DoDI 5525.01, the DAF is responsible for the provision of attorney fees in appropriate cases and ensuring the awareness of laws and customs of the host country for DoW personnel assigned to foreign areas, and in accordance with Title 32, Code of Federal Regulations (CFR), Part 151, *Foreign Criminal and Civil Jurisdiction*, for their dependents.

1.4. (New) The air or space component Staff Judge Advocate (SJA) may issue guidance on the provision of legal support to facilitate the execution of the responsibilities of the CCDR, DCO, and “commanders exercising general-court martial jurisdiction over Service members”, provided it is consistent with DoDI 5525.01, this instruction, and any instructions issued by the relevant Combatant Commander (CCDR), designated commanding officer (DCO), or designated Country Representative (CR).

2.1. (Replace) **The Air Force Operations and International Law Directorate (AF/JAO) will**:

2.1.1. (Replace) Coordinate, upon request by a commander or their SJA, on foreign criminal jurisdiction matters, other than counsel fees and other expenses related to foreign criminal cases after consultation with the MAJCOM/FLDCOM SJA as applicable.

2.1.2. (Replace) Maintain the DAF foreign criminal jurisdiction database.

2.1.3. (New) Maintain a database of completed country law studies produced pursuant to paragraph 4.1. of DoDI 5525.01 to promote awareness within the DAF of the laws and customs of foreign countries.

2.2. (Replaced) **The Air Force Civil Law and Litigation Directorate (AF/JAC)** will coordinate, upon request by a commander or their SJA, on counsel fees and other expenses related to foreign criminal cases.

2.2.1. (Deleted)

2.2.2. (Deleted)

2.2.3. (Deleted)

2.2.4. (Deleted)

2.2.4.1. (Deleted)

2.2.4.2. (Deleted)

2.2.5. (Deleted)

2.2.6. (Deleted)

2.3. (Replaced) **Commanders will:**

2.3.1. (Replaced) When exercising court-martial jurisdiction over the accused, and in consideration of the role of the DCO, make consistent efforts, in coordination with in-theater U.S. personnel and appropriate officials of a foreign country, to maximize U.S. jurisdiction to the extent practicable and consistent with applicable agreements.

2.3.2. (Replaced) When exercising court-martial jurisdiction over the accused, promptly communicate with the DCO where it appears probable that the release of jurisdiction over service members will not be obtained, and the accused may not obtain a fair trial.

2.3.2.1. (Deleted)

2.3.3. (Replaced) If authorized to expend appropriated funds, coordinate with their SJA and Comptroller prior to authorizing counsel fees and other expenses related to foreign criminal proceedings, in accordance with applicable laws and the guidance in Section 3 of this instruction.

2.3.4. (Replaced) Place on international hold those Airmen and Guardians who have or may become subject to foreign criminal jurisdiction, consistent with the guidance in Section 4 of this instruction. **(T-1)**

2.3.5. (New) Ensure all DoW personnel facing criminal charges in foreign jurisdictions are informed of their rights and privileges consistent with the guidance in Section 5 of this instruction. **(T-1)**
2.3.6. (New) Maintain current records of reports of each visit to service members confined in foreign penal institutions, consistent with the requirements of section 4.7. of DoDI 5525.01. **(T-0)**

2.4. (Replaced) **MAJCOM/FLDCOM SJAs will** provide AF/JAO with a copy of each country law study prepared by the Geographic Combatant Command pursuant to paragraph 4.1. of DoDI 5525.01 for all countries where serviced units have DoW personnel permanently stationed or temporarily assigned. **(T-1)**

2.5. (Replaced) **Installation SJAs will:**

2.5.1. (New) Maintain a copy of the country law study prepared by the Geographic Combatant Command pursuant to paragraph 4.1. of DoDI 5525.01 for all countries where serviced units have DoW personnel permanently stationed or temporarily assigned and provide copies to the relevant MAJCOM/FLDCOM SJA. **(T-1)**

2.5.2. (New) Regularly review the country law studies and promptly notify the appropriate Combatant Command SJA (routed through the relevant MAJCOM/FLDCOM SJA) once they become aware of any possible conflict or change in host nation law. **(T-1)**

2.5.3. (New) If a case arises in a jurisdiction without an existing country law study, consult with the relevant Combatant Command SJA (routed through the relevant MAJCOM/FLDCOM SJA) to determine if a list of relevant source materials for the foreign country exists.

2.5.4. (New) Ensure any existing country law studies are distributed and briefed to commanders and their staff when host nation legal changes would impact DAF personnel or missions. **(T-1)**

2.5.5. (New) Ensure DoW personnel and their dependents assigned to foreign areas are aware of relevant laws and customs of the host country. **(T-1)**

2.5.6. (New) Where DoW personnel have or may become subject to foreign criminal jurisdiction:

2.5.6.1 (New) The servicing SJA of the member's home unit is responsible for creating and updating the foreign criminal jurisdiction database (JAGUARS) maintained by AF/JAO. This requirement includes notifying MAJCOM/FLDCOM personnel and the Theater Air Component Command SJA when cases are opened or closed, as appropriate. For cases involving Airmen or Guardians, note the corresponding Disciplinary Case (as recorded in the Disciplinary Case Management System - Automated Military Justice Analysis and Management System) in the initial SJA notification and in JAGUARS. **(T-1)**

2.5.6.2. (New) Ensure, in accordance with DAFMAN 71-102, *Air Force Criminal Indexing*, that the relevant National Crime Information Center database is updated to reflect the completed post-trial action. **(T-1)**

2.5.6.3. (New) In countries where the Air Force component commander is the Designated Commanding Officer (DCO), the local servicing SJA is responsible for creating and maintaining a case file in JAGUARS for all DoW personnel assigned to that command.

2.5.7. (New) Advise and assist the commander authorized to expend appropriated funds on counsel fees and other expenses related to foreign criminal proceedings, in accordance with applicable laws and the guidance in Section 3 of this instruction.

2.5.8. (New) Advise and assist, as appropriate, the commander to manage the international hold of Airmen and Guardians who have or may become subject to foreign criminal jurisdiction consistent with the guidance in Section 4 of this instruction.

2.5.9. (New) Ensure DoW personnel and their qualifying dependents facing criminal charges are informed of their rights and privileges consistent with the guidance in Section 5 of this instruction.

2.5.10. (New) Assist the commander to maintain current records of reports of each visit to service members confined in foreign penal institutions, consistent with the requirements of Section 4.7. of DoDI 5525.01.

2.6. (New) DoW personnel facing foreign criminal charges are personally responsible for attending all necessary court hearings.

3. (New) **Counsel Fees and Other Expenses Related to Foreign Criminal Cases**

3.1. (Replaced) **Authority.** In accordance with Title 10 United States Code (USC) Section 1037, persons subject to the Uniform Code of Military Justice (UCMJ) may be entitled to funding for counsel fees, court costs, bail, and other expenses incident to the representation, before the judicial tribunals and administrative agencies of any foreign nation. Payment of fines is not authorized under this instruction.

3.1.1. (New) Non-military DoW personnel not subject to the UCMJ who are employed by or accompanying the armed forces in a foreign country may be entitled to funding in the same circumstances as Airmen and Guardians in accordance with paragraph 4.6. of DoDI 5525.01, 32 CFR 151.6(c) and 32 CFR 845.

3.1.2. (New) Dependents of DoW personnel may qualify for entitlements in accordance with 10 USC §1037 if at the time of the act or omission (1) they meet pertinent DoW criteria establishing dependent status, and (2) they are accompanying DoW personnel, in accordance with 32 CFR 845. Refer to paragraph 4.6. of DoDI 5525.01 for additional guidance.

3.1.3. (New) Funds under 10 USC §1037 will not be used to provide legal representation to indirect hire and contractor employees, or their dependents.

3.1.4. (New) Personnel not eligible under the above criteria may request funds for the provision of counsel and payment of expenses in exceptional cases. Such requests will be submitted by these persons through appropriate service channels to the Secretary of the Air Force or designee. Recommendations will accompany forwarding endorsements.

3.2. (Replaced) **Responsibility.** Requests for the provision of counsel, bail, or payment of expenses will be made by the eligible individual and forwarded through appropriate channels as follows in accordance with 32 CFR 845: for military members and their dependents, to the officer exercising general court-martial (GCM) jurisdiction over the military member, or their designee; for civilian employees and their dependents, to the GCM authority, or designee, in the command in which the civilian is employed. **(T-0)** The GCM authority will take final action approving or disapproving the request. For those individuals in a foreign country in a leave or temporary duty status, their parent command and its GCM authority have this responsibility in consultation with the in-theater MAJCOM SJA. In accordance with paragraph 3.1.4., cases of exceptional interest not covered by DoDI 5525.01, paragraphs 4.5. or 4.6. will be forwarded to the Secretary of the Air Force for action. **(T-0)**

3.3. (New) **Criteria for the provision of counsel and payment of expenses in criminal cases involving DoW personnel subject to the UCMJ.** Requests for the provision of counsel fees and payment of expenses in criminal cases may be approved in pre-trial, trial, appellate, and post-trial proceedings in any criminal case involving DoW personnel subject to the UCMJ where any of the following criteria are met:

3.3.1. (New) The act complained of occurred in the performance of official duty.

3.3.2. (New) The sentence that is normally imposed includes confinement, whether or not such sentence is suspended.

3.3.3. (New) Capital punishment might be imposed.

3.3.4. (New) An appeal is made from any proceeding in which there appears to have been a denial of the substantial rights of the accused.

3.3.5. (New) Conviction of the offense alleged could form the basis for administrative discharge proceedings for misconduct as a result of a civil court disposition.

3.3.6. (New) The case, although not within the criteria in paragraphs 3.3.1. through 3.3.5. above, is considered to have a significant impact on the relations of U.S. forces with the host country, or involve any other particular U.S. interest.

3.4. (New) **Denial.** Irrespective of the criteria for the provision of counsel and payment of expenses in criminal cases, an approval authority may deny a request for the provision of counsel, bail, or payment of expenses when:

3.4.1. (New) The eligible requestor is in an absent without leave or deserter status at the time of the request, or

3.4.2. (New) The requestor is otherwise not subject to U.S. military control.

3.5. (New) **Criteria for the provision of counsel and payment of expenses in criminal cases involving DoW personnel not subject to the UCMJ.** Requests for the provision of counsel fees and payment of expenses in criminal cases may be approved in pre-trial, trial, appellate, and post-trial proceedings in any criminal case involving DoW personnel not subject to the UCMJ where any of the following criteria are met:

3.5.1. (New) The act complained of occurred in the performance of official duty.

3.5.2. (New) The sentence that is normally imposed includes confinement, whether or not such sentence is suspended.

3.5.3. (New) Capital punishment might be imposed.

3.5.4. (New) An appeal is made from any proceeding in which there appears to have been a denial of the substantial rights of the accused.

3.5.5. (New) The case, although not within the criteria in paragraphs 3.5.1. through 3.5.4. above, is considered to have a significant impact on the relations of U.S. forces with the host country, or involve any other particular U.S. interest.

3.6. (New) **Criteria for the provision of counsel and payment of expenses in criminal cases involving dependents of DoW personnel.** Requests for the provision of counsel fees and payment of expenses in criminal cases may be approved in pre-trial, trial, appellate, and post-trial proceedings in any criminal case involving dependents of DoW personnel where any of the following criteria are met:

3.6.1. (New) The sentence that is normally imposed includes confinement, whether or not such sentence is suspended.

3.6.2. (New) Capital punishment might be imposed.

3.6.3. (New) An appeal is made from any proceeding in which there appears to have been a denial of the substantial rights of the accused.

3.6.4. (New) The case, although not within the criteria in paragraphs 3.6.1. through 3.6.3. above, is considered to have a significant impact on the relations of U.S. forces with the host country, or involve any other particular U.S. interest.

3.7. (New) **Provision of bail in criminal cases.** Bail or bond to secure the release of DoW personnel or a dependent of DoW personnel from foreign confinement before, during, or after trial may be furnished in all criminal cases. Safeguards should be imposed to ensure that at the conclusion of proceedings or on the appearance of the accused in court, the bail or bond will be refunded to military authorities. Bail will be provided only to guarantee the presence of the accused. It will not be provided to guarantee the payment of fines or civil damages. Local military authorities are expected to provide bail only after other efforts have been made to secure the release of pretrial custody of an accused to U.S. authorities. Commanders are to coordinate with their SJA and Comptroller before authorizing the posting of bail bonds using U.S. funds. **(T-2)** Where consistent with relevant law and DoW and DAF policy, Commanders will make efforts to post bail in all cases.

3.8. (New) **Payment of victim's counsel fees and other related expenses.** At the written request of a victim of a crime being adjudicated by a foreign tribunal, who meets the definition of "DoW personnel" or "Dependent of DoW personnel," the approval authority may authorize payment of counsel fees and other related expenses to represent the victim in the case if:

3.8.1. (New) The foreign country confers victims a right under local law or practice to be represented in the foreign country's court system or to otherwise participate in the judicial process; and

3.8.2. (New) The approval authority determines the case has a significant impact on U.S. interests, including relations of the Military Services with the host country.

3.9. (New) No funds will be provided under this instruction in cases where the U.S. Government is in legal effect the accused, and such cases will be referred to the Department of Justice, Office of Foreign Litigation. No funds will be provided in cases where the Airman or Guardian is a plaintiff, without prior authorization of the Secretary of the Air Force. No funds will be provided to a plaintiff who, if successful, will receive an award, in whole or in part, from the United States.

3.10. (New) **Procedure for hiring counsel and obligating funds.** The selection of individual trial or appellate counsel will be made by the represented person. Such counsel will represent the individual accused or victim and not the U.S. Government. Selection will be made from approved lists of law firms and attorneys who are qualified, competent, and experienced in trial practice. Counsel must be admitted for full practice before the courts of the foreign country involved. Normally, these lists will be coordinated with the local court or bar association and the U.S. Diplomatic or Consular Mission. These lists should include only those attorneys who comply with local attorney fee schedules approved or suggested by local bar associations.

3.10.1. (New) Fees should not exceed amounts paid under similar circumstances by nationals of the country where the trial is held. Fees will cover only services for representation in the particular case for which the contract is made. In no event may any contract include fees for representation in habeas corpus or related proceedings before courts of the United States. In addition to counsel fees, the payment of expenses may include the following when necessary and reasonable:

3.10.1.1. (New) Court costs.

3.10.1.2. (New) Bail costs.

3.10.1.3. (New) Charges for obtaining copies of records.
3.10.1.4. (New) Printing and filing fees.

3.10.1.5. (New) Interpreter fees.

3.10.1.6. (New) Witness fees.

3.10.1.7. (New) Other necessary and reasonable expenses.

3.10.2. (New) Expenses will not include the payment of fines or civil damages, directly or indirectly.

3.11. (New) **Authority to Contract for Legal Services.** Pursuant to 10 U.S.C. § 1037 and 32 CFR 845.7, the SJA or a designated representative within the servicing legal office is the appropriate officer to enter a written contract with the selected counsel on behalf of the United States. Such agreements are not subject to the Federal Acquisition Regulation (FAR). The servicing legal office will ensure that all contracts for legal services are appropriately drafted, scoped, funded, and performed. The contract will cover counsel fees and other authorized costs incurred in defense of the case in the court of first instance only. It will not include fees for representation on appeal; if the case is appealed, supplemental agreements will be executed for each appeal. A copy of the fully executed contractual agreement will serve as the obligating document.

3.13. (New) If unusual circumstances or local customs make it impracticable to enter into a written contract, action will be taken to record the agreement reached between the authorized officer and the selected counsel. This requirement may be met by:

3.13.1. (New) A letter of commission or a letter of understanding, executed between the authorized officer and the selected counsel; or

3.13.2. (New) A written request for legal service expressly or impliedly accepted by the selected counsel. If possible, this document will contain an agreed estimate of counsel fees and reasonable expenses and a statement that both fees and expenses will conform to those paid by local nationals under similar circumstances and will not exceed local fees schedules, if any. If this document does not include an agreed estimate of counsel fees and other reasonable expenses, an estimate will be furnished by the accounting component. This will serve as the commitment document for the reservation of funds.

3.14. (New) Provision of counsel and payment of expenses under this instruction are not subject to the provisions of the Federal Acquisition Regulation.

3.15. (New) Nothing in this instruction will be construed as prohibiting eligible individuals from selecting a qualified local counsel employed by the U.S. Government.

3.16. (New) **Payment of counsel fees and other expenses.** Payment of bills submitted by the selected counsel and other costs will be made in accordance with 32 CFR 845, and pertinent disbursing regulations relating to payment of contractual obligations.

3.17. (New) **Appropriated funds chargeable**. Authorized expenses incurred in implementing this instruction will be paid from appropriated funds, which are chargeable to the base for Operation and Maintenance purposes or Research and Development, as applicable. Such expenses may include transportation and per diem expenses of trial observers, interpreters, and employees of local counsel. Payments will be made from the appropriation current at time of payment, unless obligations for authorized costs have previously been established. Refunds will be processed as appropriated refunds in compliance with DAF publications.

3.18. (New) **Reimbursement**. Ordinarily, reimbursement will not be required from individuals with respect to payments made on their behalf under this instruction. However, prior to the posting of bail, the accused will sign an agreement to remit the amount of such bail or permit the application of so much of his/her pay to reimburse the Government if he/she willfully causes forfeiture of bail. In the event of such forfeiture, bail provided under this instruction will be recovered from the accused in accordance with that agreement and U.S. law. The agreement should include a statement that it does not prejudice the accused's rights to notice and hearing under the provisions of 5 USC § 5514 if the amount is considered erroneous. Likewise, it should contain a provision that it does not prejudice the accused's right to appeal to the Comptroller General of the United States and the courts after such payment or deduction has been made if the amount is considered erroneous.

4.1. (Replaced) Commanders will not transfer, curtail, or reassign Airmen or Guardians charged with criminal offenses in a foreign court until final disposition of the charges, except in accordance with that court's approved procedures or with approval of the DCO. **(T-1)** DAF authorities may withhold U.S.-funded transportation from the host nation for Non-Military DoW personnel or Dependents of DoW personnel charged with criminal offenses in a foreign court until final disposition of the charges.

4.2. (Replaced) Commanders will place on international hold all Airmen and Guardians formally charged or under formal and active investigation by the host nation for possible violation of host country law. **(T-1)** DAF authorities may also place on international hold any Airmen or Guardians who have been designated as witnesses in pending criminal investigations or prosecutions.

4.2.1. (New) Commanders will adhere to the following minimum international hold procedures in cases in which the DAF maintains or accepts custody of an individual allegedly involved in a foreign crime or a foreign criminal court case. This instruction is also applicable to cases in which the individual has posted bail from personal funds.

4.2.1.1. (New) Commanders will order Airmen or Guardians, in writing, not to depart the host country until properly released from international hold. **(T-3)** Airmen and Guardians will acknowledge these orders in writing. **(T-3)**

4.2.1.2. (New) Commanders of transient or temporary duty Airmen or Guardians who are charged with criminal offenses by foreign jurisdictions must agree to the release and departure of the Airman or Guardian from the country prior to final disposition and acknowledge the possibility the Airman or Guardian may be required to return to the country for trial and/or confinement. The commander should consult with the servicing SJA to ensure the proposed release and departure is consistent with any bail conditions, and any necessary coordination is undertaken with the host nation pursuant to applicable international agreements. The commander must also acknowledge they will order the Airman or Guardian to return for trial and that an authorization of travel funds may be required to effect that order. **(T-3)**

4.2.2. (New) Members of the Air Reserve Component (Air National Guard and Air Force Reserve) serving on active duty orders placed on international hold may require extensions of their military orders. Requests for military orders extensions shall be coordinated with the 201st Mission Support Squadron, a subordinate unit of the Air National Guard Readiness Center Mission Support Squadron, or the Air Force Reserve Command SJA, depending on the status of the member. **(T-3)**

4.3. (Replaced) When laws of a country permit trials in absentia, commanders may authorize Airmen or Guardians alleged to have committed offenses subject to primary or exclusive jurisdiction of that country to depart before completion of criminal procedures against them only in either of the following circumstances, and in coordination with the DCO or designated CR:

4.3.1. (New) Foreign authorities consent to the service member's departure from the country and the foreign authorities also agree to waive their right to try such personnel in absentia. **(T-2)**

4.3.2. (New) Foreign authorities consent to the service member's departure from the country but refuse to waive the right to try the individual in absentia, and the accused, after having been advised by proper authorities that they may be tried in absentia and convicted, consents in writing to their departure despite the possibility of a trial and conviction in absentia. **(T-2)**

4.4. (New) In exceptional cases where retention of Airmen or Guardians in a country would present extreme operational difficulties for the United States, the case will be referred to the DCO for consideration. When application of this paragraph would result in retention in a country beyond an Airman's or Guardian's obligated period of active service, such cases will be processed in accordance with Department of the Air Force Instruction 51-201, *Administration of Military Justice*. If a MAJCOM/FLDCOM SJA becomes aware that an accused has departed a country without U.S. military authorities knowing of pending criminal proceedings, and there is a possibility of a trial in absentia, AF/JAO will be promptly notified. **(T-1)**

5. (Replaced) International and Domestic Legal Rights and Privileges.

5.1. (Replaced) Commanders are to ensure DoW personnel and dependents of DoW personnel who are facing criminal charges in foreign courts are promptly notified of their rights and privileges under international and domestic law. **(T-2)** Commanders should convey a request for a foreign counsel to the SJA and requests for a military defense counsel to the servicing office of the Area Defense Counsel.

5.2. (New) **Installation SJA or CR Roles and Responsibilities.**

5.2.1. (New) Upon receipt of a request for the employment of a foreign counsel from an accused, or notice of arrest or charges, the SJA or designee will:

5.2.1.1. (New) Ensure the accused is informed of their privileges pursuant to 10 USC § 1037.

5.2.1.2. (New) Ensure the accused is informed of their rights and privileges guaranteed in applicable treaties or other international agreements between the United States and the country concerned.

5.2.1.3. (New) Inform the accused of the potential for administrative actions that may be taken as a result of the underlying facts and circumstances giving rise to the foreign criminal charges. For civilian employees, this includes the range of possible adverse actions as detailed in Department of the Air Force Instruction (DAFI) 36-148, *Discipline and Adverse Actions of Civilian Employees*, and DoDI 1400.25*, DoD Civilian Personnel Management*. The SJA or designee is not authorized to provide any advice regarding the probability of a particular action or outcome related to the accused's employment status. **(T-0)**

5.2.2. (New) For DoW personnel subject to the UCMJ, the SJA or designee will:

5.2.2.1. (New) Ensure the accused is aware of their Article 31 rights. **(T-0)**

5.2.2.2. (New) Ensure the accused is aware of their right to a defense counsel at no cost to the member and of their right to a civilian attorney at no cost to the Government.

5.2.3. (New) For all DoW personnel and their dependents facing criminal charges in a foreign court, the SJA or designee will:

5.2.3.1. (New) Coordinate all communications with the accused in the matter giving rise to the foreign criminal proceeding via their lawyer, if the accused is represented. **(T-0)**

5.2.3.2. (New) Ensure the accused understands that the SJA or designee is an attorney representing the DoW and is not the accused's attorney. **(T-0)**

5.2.3.3. (New) Ensure the accused understands that he or she does not have attorney-client confidentiality with the SJA or designee. **(T-0)**

5.2.3.4. (New) Appoint a trained and qualified attorney to serve as a trial observer to execute the functions of DoDI 5525.01, paragraph 4.4.

5.2.3.5. (New) Participate in pretrial discussions, facilitate communications between the accused's foreign counsel and military authorities, and may also help in obtaining documents and witnesses for the defense when such actions do not conflict with the DoW's interests.

5.2.3.6. (New) Communicate the DoW's interests to the foreign counsel, foreign authorities, and other U.S. officials. However, any official representations to foreign authorities made by the SJA's designee must be approved by the SJA and coordinated with the accused's foreign counsel.

5.3. (New) **Military Defense Counsel Roles and Responsibilities.** Upon entering an attorney-client relationship with a service member facing criminal charges in a foreign court, a detailed military defense counsel will:

5.3.1. (New) Ensure the accused is informed of their privileges pursuant to 10 USC § 1037.

5.3.2. (New) Reasonably assist the accused in coordinating with DoW representatives regarding the privileges provided by 10 USC § 1037.

5.3.3. (New) Ensure the accused is informed of their rights and privileges guaranteed in applicable treaties or other international agreements between the United States and the country concerned. The Military Defense Counsel may coordinate with the installation SJA as necessary.

5.3.4. (New) Use appropriate discretion in deciding whether to participate in pretrial discussions, facilitate communications between the accused's foreign counsel and military authorities, and assist in obtaining documents and witnesses.

5.3.5. (New) Provide other assistance and support as required by JAJD Operating Instruction 51-204, *Trial Defense Division.*

5.3.6. (New) Not represent the accused at a foreign criminal or civil proceeding. **(T-0)** However, the Military Defense Counsel may communicate with the foreign counsel to facilitate appropriate representation of the accused in military adverse actions.

5.4. (New) **Trial Observer Responsibilities.** The SJA appointed trial observer will:

5.4.1. (New) Attend and prepare formal reports in all cases of trials of DoW personnel by foreign courts or tribunals, except for minor offenses. **(T-0)** In cases of minor offenses, the observer will attend the trial at the discretion of the DCO, but will not make a formal report.

5.4.2. (New) Attend the trial on the merits and other pre- and post-trial proceedings where significant procedural or substantive matters are decided. **(T-0)** Trial observers are not required to attend all preliminary proceedings, such as scheduling hearings, unless directed by the DCO.

5.4.3. (New) Generate a report meeting the requirements of DoDI 5525.01, para. 4.4.c. which shall include:

5.4.3.1. (New) A factual description or summary of the trial proceedings. **(T-0)** It should enable those reading the report to make an informed judgement if:

5.4.3.1.1. (New) There was any failure to comply with the procedural safeguards secured by a pertinent status of forces agreement.

5.4.3.1.2. (New) The accused received a fair trial under all the circumstances.

5.4.3.2. (New) Specific conclusions of the trial observer with respect to paragraph 5.4.3.1.1. and the report must state in detail the basis for the conclusions. **(T-0)**

5.4.4. (New) Trial observer reports must be treated in accordance with DoD Instruction (DoDI) 5200.48, *Controlled Unclassified Information (CUI)*. **(T-0)**

5.4.5. (New) Forward their report to the DCO. **(T-0)** Copies of the report will be provided to the MAJCOM/FLDCOM legal office and forwarded to AF/JAO. **(T-1)**.

5.4.6. (New) Forward reports immediately upon completion of the trial in the lower court which will not be delayed because of the possibility of a new trial, rehearing, or appeal. **(T-0)**

5.4.7. (New) Forward reports of a new trial, rehearing, or appeal in the same manner as the original trial observer reports. **(T-0)**

5.4.8. (New) Fulfill the duties regarding the dependents of DoW personnel established by Part 151 of Title 32, CFR. This includes processing trial observer reports regarding dependents of DoW personnel IAW DoDI 5525.01, paragraph 4.4.

AFI51-402_DAFGM2026-01

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

(New) Title 32, Code of Federal Regulations, Part 151, *Foreign Criminal and Civil Jurisdiction*

(New) Title 32, Code of Federal Regulations, Part 845, *Counsel Fees and Other Expenses in Foreign Tribunals*

(New) DoDI 1400.25*, DoD Civilian Personnel Management* (current version)

(Deleted) DODD 5525.1, *Status of Forces Policy and Information*, 7 August 1979

(New) DoDI 5525.01, *Foreign Criminal and Civil Jurisdiction*, 31 May 2019

(New) DoDI 5200.48, *Controlled Unclassified Information (CUI)*, 6 March 2020

(New) DAFI 36-148, *Discipline and Adverse Actions of Civilian Employees*, 27 September 2022

(New) DAFMAN 71-102, *Air Force Criminal Indexing*, 21 July 2020

(Deleted) ARMY REGULATION 27-50; SECNAVIST 5820.4G; AFJI 51-706, *Status of Forces Policies, Procedures, and Information*, 18 October 2017

Abbreviations and Acronyms

(Deleted) **AF/JAO–**Operations and International Law Directorate
(Deleted) **AFJI–**Air Force Joint Instruction
(New) **CCDR–**Combatant Commander
(New) **CFR–**Code of Federal Regulations
(New) **CR–**Country Representative
(New) **DAFI–**Department of the Air Force Instruction
(New) **DCO–**designated commanding officer
(New) **DoW–**Department of War
(New) **SOFA–**Status of Forces Agreement
(New) **SJA–**Staff Judge Advocate
(New) **UCMJ–**Uniform Code of Military Justice
(New) **USC–**United States Code

(New) ***Office Symbols***

(New) **AF/JAC–**Air Force Civil Law and Litigation Directorate
(New) **AF/JAO–**Air Force Operations and International Law Directorate

Terms

area outside the United States (New)–For the purposes of Part 1 of this instruction, any area outside the United States and its territories and possessions, the Northern Mariana Islands, and the Commonwealth of Puerto Rico.

dependents of DoW personnel (New)–For the purposes of Part 1 of this instruction, eligible dependents of DoW personnel when those individuals are in an area outside the United States as a result of accompanying DoW personnel who are assigned duty in that area (except for those DoW personnel serving under a U.S. Chief of Mission).

designated commanding officer (Replaced)– For the purposes of Part 1 of this instruction, the military officer who is designated by the appropriate Combatant Commander to fulfill the duties outlined in DoDI 5525.01.

DoW personnel (New)–For the purposes of Part 1 of this instruction, service members and non-military DAF personnel, when those personnel are in an area outside the United States in connection with official duties. Service members and non-military DoW personnel serving under a U.S. Chief of Mission are not considered to be "DoW personnel" as defined for the purposes of Part 1 of this instruction.

non-military DoW personnel (New)–For the purposes of Part 1 of this instruction, nationals and non-nationals of the United States who are serving with or accompanying the Military Services in an area outside the United States.

Service (New)– For the purposes of Part 1 of this instruction, includes all Armed Forces, including the U.S. Army, U.S. Navy, U.S. Air Force, U.S. Space Force, U.S. Marine Corps, and U.S. Coast Guard.

BY ORDER OF THE
SECRETARY OF THE AIR FORCE

AIR FORCE INSTRUCTION 51-402

6 AUGUST 2018

Law

INTERNATIONAL LAW

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This publication implements Air Force Policy Directive 51-4, *Operations and International Law*. It provides guidance to Air Force Judge Advocates, civilian lawyers, and commanders for addressing issues dealing with international law; foreign tax relief program; foreign criminal jurisdiction; handling requests for political asylum and temporary refuge; and criminal jurisdiction of service courts of friendly foreign forces throughout the Air Force. It applies to all Regular Air Force, Air National Guard (ANG) of the United States (US), Air Force Reserve, Department of the Air Force civilian personnel, and contractors tasked with responsibilities identified herein, except where noted otherwise. This publication may be supplemented at any level, but all supplements must be routed to the Office of Primary Responsibility (OPR) listed above for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the OPR listed above using the Air Force (AF) Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Air Force Instruction (AFI) 33-360, *Publications and Forms Management*, Table 1.1, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air

Force Manual 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

SUMMARY OF CHANGES

This document has been rewritten and needs to be completely reviewed. It consolidates and replaces AFI 51-702, *Foreign Tax Relief Program*; AFI 51-703, *Foreign Criminal Jurisdiction*; AFI 51-704, *Handling Requests for Political Asylum and Temporary Refuge*; AFI 51-705, *Criminal Jurisdiction of Service Courts of Friendly Foreign Forces and Sending States in the United States*; and incorporates portions of AFI 51-108, *The Judge Advocate General's Corps Structure, Deployment, and Operational Support*. The content of the consolidated instructions has also been substantially revised to be more concise, remove unnecessary redundancies with implemented regulations, and place approvals and authorities at the lowest possible level.

Part 1
Foreign Criminal Jurisdiction

1. Overview.

1.1. The Air Force seeks to protect, to the maximum extent possible, the rights of US personnel who may be subject to criminal trial by foreign courts and imprisonment in foreign prisons.

1.2. For additional information, see ARMY REGULATION 27-50; SECNAVIST 5820.4G; AIR FORCE JOINT INSTRUCTION (AFJI) 51-706, *Status of Forces Policies, Procedures, and Information*.

2. Roles and responsibilities.

2.1. The Air Force Operations and International Law Directorate (AF/JAO) shall:

2.1.1. Coordinate upon request by general court martial convening authorities, or designees, regarding decisions to post bail using United States (US) funds.

2.1.2. Manage the foreign criminal jurisdiction database.

2.2. The staff judge advocate (SJA) to the relevant commander shall:

2.2.1. Assist the relevant designated commanding officer in implementing Air Force policy to seek the release from foreign custody and to protect, to the maximum extent possible, the rights of any Air Force personnel (military members, civilian employees, and dependents) charged with criminal offenses under foreign law. (See Terms section of Attachment 1 for definition of the designated commanding officer.) (T-2)

2.2.2. Assist the relevant designated commanding officer in implementing Air Force policy to maximize jurisdiction, or request local authorities refrain from exercising their jurisdiction, over any Air Force personnel (military members, civilian employees, and dependents), charged with a criminal offense under foreign law. (T-2)

2.2.3. Report cases and provide appropriate updates to the foreign criminal jurisdiction database managed by AF/JAO. (T-1)

2.2.4. With respect to bail requests:

2.2.4.1. Installation SJAs will coordinate with general court martial convening authority SJAs any requests to post bail bonds using US funds. (T-2)

2.2.4.2. General court martial convening authority SJAs shall obtain the approval or disapproval of the general court martial convening authority, or designee, of any requests to post bail bonds using US funds.

2.2.5. General court martial convening authority SJAs have direct liaison authority (DIRLAUTH) to coordinate with AF/JAO when a question of law or policy requires, with a courtesy copy to the major command SJA.

2.2.6. Appoint a military legal advisor upon request from a military member subject to foreign criminal jurisdiction. (T-1)

2.3. Commanders shall:

2.3.1. Coordinate with their SJA before authorizing the posting of bail bonds using US funds. (T-2)

2.3.2. Make available Air Force members facing foreign criminal charges to attend necessary hearings, including those members under Air Force military custody. (T-2)

2.3.2.1. Determine the conditions necessary to ensure the US is able to meet its international legal obligations to make Air Force personnel available for host nation investigation, prosecution, and confinement, as appropriate. (T-3)

2.3.3. Ensure all Air Force personnel facing foreign criminal charges are promptly notified of their ability to request the services of a military legal advisor. (T-1)

2.3.4. Convey a request for a military legal advisor to the appropriate SJA for appointment. (T-3)

2.3.5. If authorized to expend appropriated funds, consider and act upon requests for payment of victim's counsel fees and other related expenses in consultation with the SJA and in accordance with applicable laws. (T-3)

2.4. Air Force personnel. Air Force personnel facing foreign criminal charges are personally responsible for attending all necessary court hearings. (T-3)

2.5. Military legal advisors. Military legal advisors shall provide legal advice to assigned clients on all US-related matters arising out of criminal charges pending in a foreign court, in accordance with AFJI 51-706. (T-1)

3. Advising on Host Nation Law.

3.1. Judge advocates and civilian attorneys should be familiar with the governing laws, regulations, and procedures which apply to questions of foreign criminal jurisdiction.

3.2. SJAs should reach out to senior commanders, the foreign criminal jurisdiction liaison, and embassy personnel to plan a real-time response to potential politicized situations.

Whenever possible, SJAs should build relationships with host nation authorities, local legal officials, and municipal leaders.

4. International Hold and Departing the Host Country.

4.1. For guidance on placing Airmen subject to foreign criminal jurisdiction on international hold, see AFJI 51-706.

4.2. Members of the Air Reserve Component (Air National Guard (ANG) and Air Force Reserve (USAFR)) serving on active duty orders placed on international hold may require extensions of their military orders. Requests for military orders extensions shall be coordinated with the 201 Mission Support Squadron, a subordinate unit of the ANG Readiness Center Mission Support Squadron, or the Air Force Reserve Command SJA, depending on the status of the member. (T-3)

4.3. For guidance on handling civilian employees and dependents charged with criminal offenses in a foreign court, see AFJI 51-706.

5. Military Legal Advisors.

5.1. Qualifications. Only Air Force judge advocates or civilian attorney employees of the Air Force may serve as military legal advisors for Air Force personnel. Judge advocates assigned as area defense counsel may be appointed as military legal advisors with coordination of the chief senior defense counsel of the relevant region. Any judge advocate who has acted, or is expected to act, as trial counsel or trial observer in a case involving the member shall not be appointed as that member's military legal advisor. An SJA shall not be appointed as military legal advisor. (T-2)

Part 2
Criminal Jurisdiction of Service Courts of Friendly Foreign Forces and Sending States in the United States

6. Overview. The Air Force will facilitate the exercise of criminal jurisdiction by friendly foreign forces (foreign military forces with respect to which the President has made a declaration as provided in Title 22 United States Code Section 706) or sending states (a foreign state that, at the invitation of the US, has any of its military forces in the US) having service courts in the US. (T-0)

7. Roles and Responsibilities.

7.1. The Secretary of the Air Force (or designee) shall:

7.1.1. Approve any pretrial confinement or confinement before execution of a sentence of friendly foreign forces or forces of a sending state exceeding 45 days.

7.1.2. Authorize and designate a suitable place of confinement when a friendly foreign force or sending state requests confinement of one of their members in an Air Force military correctional facility for persons sentenced to imprisonment for a period in excess of six months.

7.2. The Judge Advocate General shall serve as the Air Force designated agent to assist friendly foreign forces and the forces of a sending state in exercising criminal jurisdiction

over their personnel under the provisions of 22 USC §§ 701-706, or applicable international agreement.

7.3. AF/JAO shall:

7.3.1. Carry out The Judge Advocate General's responsibilities in assisting friendly foreign forces and the forces of a sending state in exercising criminal jurisdiction over their personnel.

7.3.2. Notify the General Counsel of the Department of Defense, the General Counsel of the Air Force, the Under Secretary of Defense for Policy, the Assistant to the Secretary of Defense for Public Affairs and the Chairman of the Joint Chiefs of Staff of the intent of a friendly foreign force or sending state's service court, located in the US, to exercise its criminal jurisdiction.

7.3.3. Maintain reports of incidents in the foreign criminal jurisdiction database or other appropriate database.

7.4. Major command SJAs shall:

7.4.1. Assist AF/JAO in carrying out The Judge Advocate General's responsibilities as the designated agent to assist friendly foreign forces and the forces of sending states in exercising criminal jurisdiction over their personnel by:

7.4.1.1. Establishing appropriate channels and procedures for receiving and forwarding friendly foreign forces' and sending states' requests for assistance, interpretation, and waivers.

7.4.1.2. Provide friendly foreign forces and sending states with contact information for authorities of the US and its political subdivisions, upon request.

7.5. Wing level SJAs shall:

7.5.1. Assist friendly foreign forces or sending states in contacting US authorities and in forwarding or receiving requests for jurisdiction, as needed, and coordinate their efforts to assist through major command channels to AF/JAO. (T-3)

7.5.2. Ensure that any requests for apprehension comply with the requirements set forth in paragraph 9.1 of this instruction. (T-0)

7.5.3. Seek guidance promptly from AF/JAO when compliance with the request for apprehension is considered inadvisable or when the person to be apprehended is a US national or ordinarily resides in the US. (T-0)

7.5.4. Report any incidents pursuant to this instruction using the foreign criminal jurisdiction database or other appropriate database as designated by AF/JAO. (T-1)

7.5.5. Alert AF/JAO, in coordination with the appropriate major command SJA, of any pretrial confinement of a friendly foreign force or sending state member which reaches the 30th day, due to the role of the Secretary of the Air Force in approving pretrial confinement exceeding 45 days. (T-1)

7.6. Commanders.

7.6.1. Commanders of installations that serve as the host for friendly foreign forces or forces of a sending state shall:

7.6.1.1. Receive and act upon assistance requests from foreign commanders seeking jurisdiction over their forces and provide all necessary assistance consistent with this instruction and within their capability. (T-0) When it is impractical to give assistance (for example, when apprehending a friendly foreign force or sending state member not in the local area), the host installation commander may communicate directly with the appropriate US Armed Forces installation commander in fulfilling the request.

7.6.1.2. Refer requests for confinement to serve a sentence in excess of six months through the appropriate SJA and AF/JAO to the Secretary of the Air Force for action. (T-1)

7.6.2. The installation commander who has authority over the corrections facility will carry out the confinement of friendly foreign force or sending state prisoners in accordance with the rules and policies of AFI 31-105, *Air Force Corrections System* and with paragraph 11 of this instruction. (T-0)

8. Limitations on Jurisdiction.

8.1. The US retains the primary right to exercise its jurisdiction over matters subject to concurrent jurisdiction unless an international agreement, such as the North Atlantic Treaty Organization Status of Forces Agreement, provides otherwise.

8.2. Authorities of a friendly foreign force or sending state may request a waiver of the primary right of the US to exercise jurisdiction.

9. Apprehension.

9.1. Commanders of installations that serve as the host for friendly foreign forces or of forces of a sending state shall receive and act upon requests from the commanding officer of a friendly foreign force or sending state force to apprehend any member of their force, so long as the request includes:

9.1.1. A description of the person to be apprehended and a statement that the person is a member of the friendly foreign force or sending state concerned and is subject to the jurisdiction of its service court for the alleged offense. (T-0)

9.1.2. A description of the offense allegedly committed by the person to be apprehended. (T-0)

9.1.3. The name, address, and telephone number of an officer of the friendly foreign force or sending state force to be contacted if the person is apprehended. (T-0)

9.1.4. Citation to the applicable provisions of 22 USC §§ 701-706 or international agreement authorizing the apprehension. (T-0)

9.2. When a conforming request for apprehension is made and the host installation commander concerned approves the request, any member or civilian employee of the Air Force security forces or Air Force Office of Special Investigations who is authorized to apprehend US military personnel may apprehend a friendly foreign force or sending state member.

9.3. The host installation commander, upon advice from the SJA, will coordinate the apprehension with appropriate civilian authorities if the friendly foreign force or sending state member's alleged offense involves substantial local interest. (T-0)

10. Confinement.

10.1. Confinement will be at the sole expense of the country on whose behalf the prisoner is detained. (T-0)

10.2. Pre-trial confinement and confinement before execution of an adjudged sentence of friendly foreign forces and sending state members.

10.2.1. Requests by a friendly foreign force or sending state to confine one of its members in an Air Force correctional facility before trial or before execution of a sentence adjudged by a service court must include the components listed within paragraph 9.1 of this instruction. (T-0)

10.2.2. If the installation commander approves the request, the installation commander or designated representative will authorize the confinement by signing a Department of Defense (DD) Form 2707, *Confinement Order*. See AFI 31-105 for further information on confinement orders. (T-0)

10.2.3. Friendly foreign force individuals may not be placed in a military confinement facility in immediate association with US service members. (T-0)

10.2.4. Confinement is authorized provided the trial takes place promptly. The installation commander, upon advice of the SJA, should release a prisoner confined prior to trial if the friendly foreign force or force of a sending state does not take immediate steps to investigate the alleged offense and provide a prompt and speedy trial.

10.3. Post-trial confinement.

10.3.1. Requests for post-trial confinement in an Air Force correctional facility must include documentary evidence, translated into English if necessary, of the service court's sentence. (T-3)

10.3.2. The Secretary of the Air Force (or designee) must authorize and designate a suitable place of confinement when a friendly foreign force or sending state prisoner sentenced to a term exceeding six months requests confinement in an Air Force corrections facility.

10.4. Rules and policies for confinement.

10.4.1. The Air Force does not provide counsel or legal assistance to foreign prisoners. The friendly foreign force or sending state is responsible for providing counsel and legal assistance to any of its members in US custody.

10.4.1.1. Installation commanders should refer requests for legal counsel to the friendly foreign force or sending state requesting the incarceration and to the servicing installation SJA.

10.4.2. Installation commanders should accommodate requests for visitation by the friendly foreign force or sending state representatives whenever feasible.

10.5. Release From Confinement. Normally, the friendly foreign force or sending state commander will initiate the request for release from confinement by submitting a written request to the installation commander who has authority over the corrections facility. Only the installation commander or designated representative will release the prisoner by signing a DD Form 2718, *Inmate's Release Order*. See AFI 31-105. (T-0)

11. Assistance to Friendly Foreign Force or Sending State Service Courts.

11.1. In the event of a trial, the US and friendly foreign force or sending state commanders concerned should coordinate closely on security requirements for the trial.

11.2. The installation commander should make available the base courtroom or other suitable venue for the trial on the same basis as other base facilities are made available for friendly foreign force or sending state use.

11.3. The friendly foreign force or sending state shall provide or pay for court reporting, interpreting, attendance of witnesses, and any other trial-related services. (T-3)

11.4. Any trial by a friendly foreign force or sending state service court of an offense against a member of the civilian population of the US shall be open to the public, unless security considerations require otherwise, and shall take place promptly in the US within a reasonable distance from the place where the offense is alleged to have been committed, for the convenience of witnesses. (T-0)

11.5. The installation commander's SJA shall provide a copy of Department of Defense Instruction 5525.03; 22 USC §§ 701-706 (in the case of a friendly foreign force); this instruction; and any implementing directives to the requesting friendly foreign force or sending state commander, and advise the commander of a friendly foreign force specifically of the statutory authority to compel witnesses or testimony and of the rights and privileges of court members and witnesses, as set forth in 22 USC § 703 and § 704. (T-3)

12. Reports.

12.1. Responsibility for reporting incidents. Normally, the SJA of the installation which provides host support to the friendly foreign force or sending state member's unit should report to AF/JAO. Reports of incidents should include information copies to the SJAs at the major command and any intermediate headquarters.

12.2. The reporting SJA should retain reporting responsibility, unless AF/JAO determines that another installation commander's SJA is better situated to obtain and submit information.

12.3. Frequency of reports. Reports shall be submitted and updated immediately after significant events. Examples of significant events include commission of offense, request for apprehension, apprehension, request for waiver, trial, confinement, escape, or release. Reports should continue until the case is considered closed. (T-3)

Part 3
Foreign Tax Relief Program

13. Overview.

13.1. The Air Force will seek to obtain, to the maximum extent practicable, effective relief from all foreign taxes in accordance with Air Force policy.

13.2. This part does not apply to Air National Guard units in Title 32 status (that is, status activated by and in the service of the authorities of the state where the unit is located.

14. Roles and Responsibilities.

14.1. AF/JAO shall supervise and monitor the Air Force's program for foreign tax relief and coordinate with the Secretary of the Air Force General Counsel on relevant foreign tax matters.

14.2. Major command commanders shall determine who the relevant geographic combatant commander has appointed as a designated military commander as described in paragraph 2.6.b. of Department of Defense Instruction 5100.64. In countries where the designated military commander is not an Air Force commander, major command commanders with administrative control (ADCON) over overseas US Air Force forces may designate an Air Force liaison officer to coordinate communication among all Air Force activities, the designated military commander, and other competent authorities about the Air Force foreign tax relief program.

14.3. The Air Force liaison officer, if appointed, or other appropriate Air Force office in the country concerned shall refer foreign tax problems involving the Air Force and its contractors or subcontractors for action to the designated military commander and AF/JAO.

14.3.1. If the matter involves a contractor or contract personnel, Air Force contracting officers shall notify the contractor if the designated military commander refers a matter through channels to Department of Defense Office of General Counsel pursuant to paragraph 2.6.b.(1) of Department of Defense Instruction 5100.64. (T-1) Coordination shall include the Secretary of the Air Force Office of General Counsel (SAF/GC). (T-1)

14.3.2. Reports. Submit a copy of any report or summary of significant foreign tax relief program activities by or for the air component command to AF/JAO. (T-1)

Part 4
Handling Requests for Asylum and Temporary Refuge

15. Overview. Foreign nationals within US territorial jurisdiction or on the high seas who request asylum or temporary refuge are given a full opportunity to have their request considered on the merits. Only the Department of State is authorized to grant requests for asylum. Persons seeking temporary refuge receive every reasonable care and protection under the circumstances.

15.1. The senior official present at the Department of Defense shore installation or facility or on board any military vessel may grant temporary refuge to a foreign national, upon his or her request. When deciding which measures may be prudently taken to provide temporary refuge, the safety of US personnel and security of the unit must be taken into consideration.

16. Roles and Responsibilities.

16.1. Commanders. The senior commander of an Air Force element receiving a request for asylum or temporary refuge will:

16.1.1. Notify the servicing Air Force Office of Special Investigations as soon as practicable (T1)

16.1.2. Notify the nearest office of the US Citizenship and Immigration Services in the case of asylum requests within US territory. (T-0)

16.1.3. Notify his or her command post/center to transmit an operational report to the Air Force Service Watch Cell in accordance with AFI 10-206, *Operational Reporting*. (T-1)

16.1.4. If outside of US territory, notify the local US embassy or consular office. (T-1)

16.1.5. Protect the foreign national. (T-0)

16.2. Air Force Service Watch Cell. Upon receiving an operational report of a request for asylum or temporary refuge, the Air Force Service Watch Cell shall notify:

16.2.1. The Secretary of the Air Force, the Chief of Staff of the Air Force, the Air Force Office of Operations, Plans, and Requirements (AF/A3), and the Secretary of the Air Force Office of General Counsel, Intelligence, International and Military Affairs (SAF/GCI). (T-1)

16.2.2. AF/JAO. (T-1)

16.2.3. The relevant combatant command and major command. (T-1)

16.2.4. The Defense Intelligence Agency. (T-1)

16.2.5. The Air Force Office of the Deputy Chief of Staff for Intelligence, Surveillance and Reconnaissance (AF/A2). (T-1)

16.2.6. The Secretary of the Air Force Office of Public Affairs. (T-1)

16.2.7. The Air Force Legislative Liaison (for Secretary of State Notifications). (T-1)

16.3. Public affairs officers will:

16.3.1. Refer all requests for information through command channels. (T-1)

16.3.2. Not release information concerning requests for asylum or temporary refuge to the public or the media without the approval of the Assistant Secretary of Defense for Public Affairs. (T-1)

17. Granting Requests for Temporary Refuge. The senior Department of Defense official present may grant a request for temporary refuge if the foreign national appears to need protection from imminent danger to life or safety.

17.1. Temporary refuge is not intended to protect persons fleeing pursuit from duly constituted law enforcement authorities of a foreign country.

17.2. When deciding which measures may be prudently taken to provide temporary refuge, the safety of US personnel and security of the unit must be taken into consideration. (T-0)

18. Terminating Grants of Temporary Refuge. Temporary refuge, once granted by the senior commander of an Air Force element, may be terminated only when directed by the Secretary of the Air Force, or higher authority, in coordination with relevant US entities. (T-0)

19. Protection. Primary responsibility for providing protection to persons requesting asylum rests with the civilian law enforcement or security agency having exclusive or concurrent

jurisdiction. In unusual circumstances where it is necessary to protect persons on a temporary basis pending involvement of the US Citizenship and Immigration Service, Air Force commanders will take interim measures to ensure the safety of the person against attempts at forcible repatriation. (T-1)

20. Inquiries. Inquiries from foreign authorities should be addressed by the senior Air Force official present with a response that the case has been referred to higher authorities.

Part 5
Additional International Law Focus Areas

21. Overview. This part provides guidance on international agreements, international civil litigation, and gifts from foreign governments.

22. Roles and Responsibilities.

22.1. SJAs will:

22.1.1. Coordinate with appropriate higher headquarters legal offices when advising on international agreements. (T-3)

22.1.2. Refer to AFI 51-301, *Civil Litigation*, concerning foreign civil proceedings. (T-3)

22.1.3. Refer to AFI 51-901, *Gifts From Foreign Governments*, concerning gifts from foreign governments. (T-3)

23. International Agreements and Host Nation Laws. For additional information see AFI 51701, *Negotiating, Concluding, Reporting, and Maintaining International Agreements*, and Department of Defense Directive 5530.3.

23.1. SJAs should be familiar with and ensure access to applicable international agreements and all supplemental and implementing agreements.

23.2. SJAs should be familiar with and ensure access to host nation laws and regulations affecting status of forces agreement obligations. For additional information see DoDD 5525.1.

23.3. Where appropriate, legal offices should have sufficient classified storage to enable ready access to applicable agreements.

23.4. SJAs should ensure commanders and other personnel are briefed about host nation laws, agreements of significance to operations, and the legal limitations on negotiating international agreements without a properly established delegated authority to negotiate.

JEFFREY A. ROCKWELL
Lieutenant General, USAF
The Judge Advocate General

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 22 United States Code Sections 701-706

DODI 5100.64, *DOD Foreign Tax Relief Program*, 8 July 2016

DODI 5525.03, *Criminal Jurisdiction of Service Courts of Friendly Foreign Forces and Sending States in the United States*, 23 May 2016

DODD 5525.1, *Status of Forces Policy and Information*, 7 August 1979

DODD 5530.3, *International Agreements*, 11 June 1987

AFI 10-206, *Operational Reporting*, 11 June 2014

AFI 31-105, *Air Force Corrections System*, 15 June 2015

AFI 33-360, *Publications and Forms Management*, 1 December 2015

AFI 51-301, *Civil Litigation*, 20 June 2002

AFI 51-701, *Negotiating, Concluding, Reporting, and Maintaining International Agreements*, 5 December 2017

ARMY REGULATION 27-50; SECNAVIST 5820.4G; AFJI 51-706, *Status of Forces Policies, Procedures, and Information*, 18 October 2017

AFMAN 33-363, *Management of Records* 1 March 2008,

AFPD 51-4, *Operations and International Law*, 24 July 2018

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

DD Form 2707, *Confinement Order*

DD Form 2718, *Prisoner Release Order*

Abbreviations and Acronyms

ADCON—Administrative control

AF/JAO—Operations and International Law Directorate

AFI—Air Force Instruction

AFJI—Air Force Joint Instruction

AFMAN—Air Force Manual

ANG—Air National Guard

DIRLAUTH—Direct liaison authority

DODI—Department of Defense Instruction

DODD—Department of Defense Directive

US—United States

USAFR—US Air Force Reserve

Terms

Approval Authority —Senior leader responsible for contributing to and implementing policies and guidance/procedures pertaining to his/her functional area(s) (e.g., heads of functional two-letter offices).

Asylum — Protection, authorized by the US Department of State, granted by the US Government within the US to a foreign national who, due to persecution or a well-founded fear of persecution on account of his or her race, religion, nationality, membership in a particular social group, or political opinion, is unable or unwilling to avail himself or herself of the protection of his or her country of nationality (or, if stateless, of last habitual residence).

Designated Commanding Officer – The designated commanding officer is identified by a combatant commander or the Secretary of Defense in areas where forces are stationed but no combatant commander is assigned or the Military Department in areas where no US forces are regularly stationed. For additional information see Department of Defense Directive 5525.1.

Friendly Foreign Force—Any military, naval, or air force of any friendly foreign state with respect to which the President of the United States has made a declaration as provided in Title 22 United States Code, Section 706.

Relief—Any method, technique, or procedure by which the ultimate economic burden of a tax on Department of Defense funds may be avoided or otherwise remedied, such as exemption, refund, or drawback.

Sending State—A foreign state that, at the invitation of the US, has any of its military, naval, or air forces in the US pursuant to an international agreement that authorizes the foreign state to exercise criminal jurisdiction within the US. Foreign states which are parties to the NATO Status of Forces Agreement are authorized to exercise service court jurisdiction pursuant to Article VII of that treaty, as are parties to the Partnership for Peace Status of Forces Agreement.

Service Court —Any military, naval, or air force court, court martial, or similar tribunal of any friendly foreign force or sending state within the US.

Tax —All direct or indirect foreign customs duties, import and export taxes, excises, fees, and any other charges, imposed at the national, local, or an intermediate level of a foreign country other than charges for services requested and received, regardless of how a charge is denominated in foreign law or regulation. Taxes include, but are not limited to, business tax, circulation tax, consumption tax, gasoline tax, gross income tax, gross receipts tax, license tax, luxury tax, personal property tax, possession tax, production tax, purchase tax, real property tax, registration tax, sales tax, service tax, stamp tax, trade tax, transaction tax, transfer tax, transportation tax, turnover tax, use tax and value added tax.

Temporary Refuge—Protection afforded for humanitarian reasons to a foreign national in a Department of Defense shore installation, facility, or military vessel within the territorial jurisdiction of a foreign nation or in international waters, under conditions of urgency in order to secure the life or safety of that person against imminent danger, such as pursuit by a mob.